

Workplace Harassment, Intimidation, and Adult Grooming: Definitions, Warning Signs, and Evidence-Based Prevention

TL;DR

- **Workplace harassment, intimidation, and adult grooming are three distinct but interlocking phenomena unified by power asymmetry.** Harassment is a legally defined category under Title VII and other civil-rights statutes; intimidation (workplace bullying, coercion, threats) is largely unregulated by federal law but heavily researched; and adult workplace “grooming” is an emerging — and not fully scientifically validated — concept that describes the staged manipulation a perpetrator uses to make subsequent harassment, exploitation, or abuse possible.
- **The strongest evidence-based prevention levers are structural, not pedagogical.** Independent reporting channels (ombuds, third-party hotlines), bystander- and manager-focused training, anonymous climate surveys with public reporting, leadership accountability tied to consequences, and dilution of concentrated power outperform traditional one-off anti-harassment compliance training, which the 2016 EEOC Select Task Force and the 2018 National Academies report both concluded lacks evidence of reducing harassment.
- **Nonprofits face distinct risks that warrant tailored reform.** Founder veneration, mission-driven self-sacrifice, board capture, thin HR infrastructure, and donor-dependent silence make nonprofit organizations especially vulnerable to all three behaviors; for-profits’ larger HR and legal infrastructure is offset by stronger incentives to suppress disclosure to protect brand and litigation exposure. Recommendations must be sector-calibrated.

Key Findings

1. **Harassment is persistent and under-reported.** “Almost fully one third of the approximately 90,000 charges received by EEOC in fiscal year 2015 included an allegation of workplace harassment” EEOC (EEOC Select Task Force, 2016), and retaliation has been the most frequently cited basis for EEOC charges for seventeen

consecutive years — 42,301 retaliation charges in FY 2024 (47.8% of all charges filed).

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2. **Most workplace sexual harassment is “put-downs,” not “come-ons.”** The 2018 National Academies report defines three categories — gender harassment, unwanted sexual attention, and sexual coercion — and finds that gender harassment (the “iceberg” beneath the waterline) is by far the most prevalent. The best meta-analysis to date (Ilies, Hauserman, Schwochau & Stibal, *Personnel Psychology*, 2003), based on 86,000 respondents from 55 probability samples, found that on average 58% of women experience sexually harassing behaviors at work; [NCBI](#) [Wiley Online Library](#) in academia specifically the rate is 58% of women faculty/staff, second only to the military (69%).
[NCBI](#) [Springer](#)
 3. **Workplace bullying (“intimidation”) affects roughly 30% of U.S. workers directly and 49% including witnesses** (2021 Workplace Bullying Institute / Zogby Analytics national survey, n=1,215), [Academia.edu](#) and is largely outside federal anti-discrimination law unless tied to a protected characteristic.
 4. **Adult workplace grooming is a recognized practitioner concept but only partially scientifically validated.** Sinnamon’s seven-stage model (2017) is the most-cited framework; [ScienceDirect](#) Winters and Jeglic’s adult adaptation (2023) is the first systematic attempt to validate a grooming model on adults. [Waldenu](#) The scholarly base is thinner than for child grooming, and the construct is contested.
 5. **Traditional sexual-harassment training has weak-to-null evidence of reducing harassment** and can backfire. Dobbin & Kalev (*PNAS* 116(25):12255–12260, 2019; *Harvard Business Review*, May–June 2020) analyzed 805 U.S. companies over 32 years [PubMed](#) [Harvard Business Review](#) and found that grievance procedures and standard employee training were followed by *decreases* in women in management; manager training and bystander training were followed by *increases*.
 6. **Institutional betrayal compounds harm; institutional courage attenuates it.** Smidt, Adams-Clark & Freyd (*PLOS ONE*, 2022; n=317 workers who experienced workplace sexual harassment) show that supportive, transparent institutional responses (anonymous surveys, whistleblower protection, accountability, apology) measurably reduce trauma symptoms and increase organizational commitment. [PLOS](#)
 7. **Nonprofits have markedly uneven adoption of basic prevention infrastructure.** Ma, LePere-Schloop & Smith (*Nonprofit Management and Leadership*, 2022) found wide variation in even written sexual-harassment policies among nonprofits; [Wiley Online Library](#) “founder’s syndrome” — concentrated, charismatic leader authority — is recognized as a governance pathology that enables abuse.
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Details

I. WORKPLACE HARASSMENT

1A. Definitions

Legal (U.S. federal). Under EEOC enforcement of Title VII of the Civil Rights Act of 1964, the Age Discrimination in Employment Act (ADEA), and the Americans with Disabilities Act (ADA), harassment is “unwelcome conduct that is based on race, color, religion, sex (including sexual orientation, transgender status, or pregnancy), national origin, older age (beginning at age 40), disability, or genetic information.” It becomes unlawful when (1) “enduring the offensive conduct becomes a condition of continued employment,” or (2) “the conduct is severe or pervasive enough to create a work environment that a reasonable person would consider intimidating, hostile, or abusive” [U.S. Equal Employment Opportunity](#) (EEOC, “Harassment” guidance).

Two doctrinal categories, established in *Meritor Savings Bank v. Vinson*, 477 U.S. 57 (1986), and refined in *Burlington Industries v. Ellerth*, 524 U.S. 742 (1998), and *Faragher v. City of Boca Raton*, 524 U.S. 775 (1998):

- **Quid pro quo harassment** — A supervisor or person with tangible-employment-action authority conditions a job benefit (hiring, promotion, retention, compensation) on submission to unwelcome sexual conduct. A single incident can suffice. [BambooHR](#) The employer is strictly liable for quid pro quo harassment by a supervisor [BambooHR](#) that results in a tangible employment action.
- **Hostile work environment** — Unwelcome conduct based on a protected characteristic that is “severe or pervasive” [AttorneyMahoney](#) enough to alter the terms or conditions of employment, evaluated under both objective (“reasonable person”) and subjective standards. *Harris v. Forklift Sys., Inc.*, 510 U.S. 17 (1993).

Discriminatory harassment can be sex-based but non-sexual (e.g., misogynistic hostility without sexual conduct), and is equally actionable when “sufficiently patterned or pervasive” [U.S. Equal Employment Opportunity](#) (EEOC, Policy Guidance on Current Issues of Sexual Harassment).

Scholarly/psychological. The 2018 National Academies consensus report — *Sexual Harassment of Women: Climate, Culture, and Consequences in Academic Sciences, Engineering, and Medicine* — adopts the social-science tripartite typology:

“Sexual harassment (a form of discrimination) is composed of three categories of behavior: (1) gender harassment (verbal and nonverbal behaviors that convey hostility, objectification, exclusion, or second-class status about members of one gender), (2)

unwanted sexual attention (verbal or physical unwelcome sexual advances, which can include assault), and (3) sexual coercion (when favorable professional or educational treatment is conditioned on sexual activity). Harassing behavior can be either direct (targeted at an individual) or ambient (a general level of sexual harassment in an environment)." [National Academies Press](#) (NASEM 2018, Ch. 2)

This is the "iceberg" model articulated by Lilia Cortina and colleagues: the visible "come-ons" (sexual coercion and unwanted sexual attention) are a small fraction of the problem; the much larger submerged mass is gender harassment — the "put-downs." Clancy, Cortina & Kirkland (*PNAS* 117(37):22614–22618, 2020) state: "by far the most prevalent form of sexual harassment is the put-down, or what social scientists call gender harassment: comments, cartoons, jokes, gestures, and other insults to members of one sex."

Organizational/HR. SHRM and EEOC's *Promising Practices for Preventing Harassment* guidance frame harassment as a workplace-culture problem, urging policies that go beyond legal-liability avoidance to address conduct that is uncivil but not yet unlawful — because such conduct sets the stage for unlawful harassment.

1B. Key Features and Types

- **Sexual harassment** — gender harassment, unwanted sexual attention, sexual coercion (NASEM 2018; Fitzgerald, Swan & Magley, 1997).
- **Discriminatory harassment** based on race, national origin, religion, disability, age (40+), pregnancy, sexual orientation, or gender identity (*Bostock v. Clayton County*, 590 U.S. ____ (2020)).
- **Hostile work environment** — pattern-based; severity-and-pervasiveness analysis.
- **Quid pro quo** — single incident sufficient if tied to a tangible job consequence.
- **Retaliation harassment** — adverse treatment in response to protected activity (opposing harassment, filing or testifying). Retaliation is the *most frequently alleged* basis in EEOC charges and a major reason underlying victims do not report.

Scale: EEOC FY 2024 — 88,531 new discrimination charges; [U.S. Equal Employment Opportunity](#) 42,301 (47.8%) alleged retaliation; harassment was the second-most-cited allegation (40.4%) [Cwc](#) (EEOC, "EEOC Publishes Annual Performance and General Counsel Reports for Fiscal Year 2024"). Retaliation rose from 22.6% of charges in 1997 to over 50% in 2018 [Rockymountainada](#) and has remained the leading basis since 2009. NASEM's meta-analytic baseline (Ilies et al., 2003): on average 58% of women experience sexually harassing behaviors at work; 43% in government, 46% in private sector, 58% in academia, and 69% in the military. [NCBI](#) [Springer](#)

1C. Warning Signs and Risk Factors

The EEOC Select Task Force on the Study of Harassment in the Workplace (2016) identified twelve organizational risk factors. These are *risk indicators*, not proof of harassment:

1. Homogeneous workforces
2. Workers who do not conform to workplace norms
3. Cultural and language differences
4. Coarsened social discourse outside the workplace
5. Many young workers
6. Workplaces with "high-value" employees (rainmakers, stars, prestige hires shielded by their value)
7. Significant power disparities (including gendered power disparities)
8. Customer-service or client-satisfaction dependence (e.g., tipped workers)
9. Monotonous or low-intensity work
10. Isolated worksites
11. Workplace cultures that tolerate or encourage alcohol consumption
12. Decentralized workplaces (low senior-management visibility)

Individual-level red flags include: pattern of "jokes" or comments targeting protected classes; supervisors who hold one-on-one meetings off-site or after hours without business reason; complaints about a specific person clustered but unsubstantiated due to fear; high turnover among one demographic; declined references or NDA-laden separations.

II. WORKPLACE INTIMIDATION (BULLYING, COERCION, ABUSE OF AUTHORITY)

2A. Definitions

Scholarly (Einarsen et al., the dominant European and International Ombuds-Association-aligned framework). Workplace bullying is "a systematic and prolonged mistreatment of one or more employees by supervisors and/or colleagues at the workplace, and where the targets also find it difficult to defend themselves against the harassment."

 Two definitional cores: (1) repeated and enduring negative acts, and (2) an imbalance of formal or informal power between perpetrator and target (Einarsen, 2000; Einarsen, Hoel, Zapf & Cooper, 2020).

Workplace Bullying Institute (Namie & Namie): "repeated, health-harming mistreatment, verbal abuse, or conduct which is threatening, humiliating, intimidating, or sabotage that interferes with work."

Legal status (U.S.): Workplace bullying *per se* is not prohibited by federal law unless it constitutes harassment based on a protected characteristic. The "Healthy Workplace Bill" (drafted by David Yamada, Suffolk University Law School) has been introduced in numerous state legislatures but no state has enacted comprehensive workplace anti-bullying legislation creating a private cause of action as of 2026. California's AB 2053 (2014) added an abusive-conduct training requirement to its anti-harassment training mandate but does not create a cause of action.

2B. Key Features

A widely used five-category typology distinguishes:

1. Threat to professional status (belittling, public humiliation, intimidating use of discipline procedures); [Wikipedia](#)
2. Threat to personal standing (innuendo, sarcasm, name-calling, insults); [Wikipedia](#)
3. Isolation (withholding information, exclusion, blocking access to opportunities); [Wikipedia](#)
4. Overwork (impossible deadlines, undue pressure); [Wikipedia](#)
5. Destabilization (failure to acknowledge work, meaningless tasks, removal of responsibility, shifting goalposts).

Power asymmetry is constitutive: bullying is fundamentally about a target's *inability to defend themselves*, which can arise from formal hierarchy or informal status (popularity, founder status, donor relationships, tenure).

Prevalence: The 2021 Workplace Bullying Institute / Zogby Analytics national survey (n=1,215; margin of error ± 2.8 points) reported that 30% of U.S. adults have been directly bullied at work; another 19% have witnessed it; 49% are affected. Witnesses to workplace bullying also experience adverse health outcomes (Nielsen, Einarsen, Parveen & Rosander, 2023, systematic review and meta-analysis in *Aggression and Violent Behavior*).

2C. Warning Signs and Risk Factors

Individual-level:

- Belittling in front of others; differential standards applied to one person;
- Withholding of information, isolation from meetings;

- Inconsistent or punitive use of performance management;
- Public displays of anger or “intense anger” directed at staff;
- Threats — explicit or implicit — about career consequences for raising concerns;
- “Yelling,” door-slamming, finger-pointing, [Florida A&M University](#) physical encroachment (Einarsen, Hoel & Notelaers, 2009).

Organizational-level: destructive or autocratic leadership styles, role conflict, high job demands with low control, organizational change or restructuring, weak ethical infrastructure, and tolerance from senior leadership (Hauge, Skogstad & Einarsen, 2007).

III. ADULT WORKPLACE GROOMING

3A. Definitions — and a Necessary Epistemic Caveat

The term “grooming” originates in the child sexual abuse literature, where it is well-established empirically (Winters & Jeglic’s sexual grooming model). Its extension to adult and workplace contexts is **recognized in safeguarding practice and emerging in scholarship, but is not as well-validated**. The Walden University systematic review (Ortiz, 2024, “Adult Sexual Grooming: A Systematic Review”) explicitly notes that applying child-grooming models to adults “assumes similar underlying mechanisms regarding agency, power differentials, and consent for children and adults [for which] there is very little research that validates such” [Waldenu](#) assumptions, and that Winters’ 2023 study is “the first attempt to validate the model for adults.” [Waldenu](#)

Working definition (synthesizing practitioner and scholarly sources): Adult workplace grooming is a deliberate, staged pattern of behavior in which a person — typically with positional, reputational, or informational power — gradually conditions a subordinate or less-powerful target [Newyorkcitydiscriminationlawyer](#) to tolerate escalating boundary violations and to comply with, or remain silent about, subsequent exploitation (which may be sexual, emotional, financial, or professional). It is distinguished from ordinary mentorship by *intent to exploit, secrecy, isolation of the target from supports, and coercive use of power asymmetry*.

Sinamon’s Seven-Stage Model (2017; published in *The Psychology of Criminal and Antisocial Behavior*, Academic Press) — the most-cited adult-grooming framework in the practitioner literature:

1. **Victim selection / targeting** — identification of vulnerable individuals [WebMD](#) (early-career, isolated, dependent on perpetrator for access); [Famiguard](#)
2. **Information gathering** — learning about target’s life, supports, vulnerabilities;

3. **Trust and friendship development** — gifts, attention, exclusive mentorship;
4. **Risk assessment and desensitization** — testing reactions, normalizing minor boundary violations;
5. **Isolation and emotional dependency** — separating the target from colleagues, family, and alternative mentors;
6. **Initiating abuse or exploitation** — sexual, emotional, or professional;
7. **Maintenance, secrecy, and control** — gaslighting, threats, leveraging shame or reputational damage.

Practitioner stage-models from HR Acuity, FaceUp, Skills for Health, and the Campaign Against Adult Grooming (CAAGe) converge on similar arcs (selection → trust → testing → isolation → exploitation → control).

The grooming concept is contested in some quarters. Critics note: the term risks pathologizing legitimate mentorship; absent clinical criteria, identification is often retrospective; and a focus on perpetrator psychology may distract from organizational accountability. Even so, the underlying behavioral pattern — incremental boundary erosion in a power-asymmetric relationship — is well-documented in case studies of institutional abuse (e.g., the systematic preparation patterns documented in cases involving Jeffrey Epstein, Larry Nassar at USA Gymnastics, Harvey Weinstein, and Keith Raniere/NXIVM) and aligns with research on coercive control (Stark, *Coercive Control*, Oxford University Press, 2007).

3B. Key Features

- **Power asymmetry as engine.** The defining feature: groomers exploit role-based authority (supervisor, mentor, faculty advisor, executive director, visa sponsor) over career advancement, evaluations, funding, or recommendations.
- **Incremental boundary violation.** Each step is small and ambiguous in isolation; in aggregate, the trajectory crosses a line that would never have been crossed in a single step. This is the architecture of plausible deniability.
- **Normalization.** Behaviors that would be alarming if introduced suddenly (late-night messaging, gifts, after-hours meetings, personal disclosures, physical touch) are normalized through repetition.
- **Manufactured specialness.** Targets are made to feel uniquely understood, chosen, indebted — “I see something special in you” — which produces self-blame later.
- **Secrecy and isolation.** Communications shift to private channels; the relationship is

framed as a confidence; the target is gradually isolated from peers, mentors, and family who might “misunderstand.”

- **Institutional protection of perpetrator.** Groomers often invest in cultivating their reputation with leadership and HR — they are charming, productive, useful — which is itself part of the strategy.

3C. Warning Signs and Organizational Conditions

Individual indicators (targeted at the perpetrator’s behavior):

- Singling out a junior person for private mentorship that requires secrecy;
- Disproportionate gifting, hospitality, or granting of career opportunities to one subordinate;
- Communications outside work channels and outside work hours;
- Personal disclosures and personal-life inquiries inappropriate to the role;
- Pattern of “accidental” physical contact;
- Active intervention to isolate the target from other mentors, peers, or family;
- Repeated boundary “tests” — comments, jokes, or touches gauged for the target’s reaction;
- Past complaints — even informal whispers — about similar behavior, especially if patterns recur with serial junior subordinates.

Organizational conditions of vulnerability — overlapping with EEOC’s harassment risk factors but with grooming-specific emphases:

- Concentrated power in a single individual (founder, named-chair faculty member, executive director, principal investigator, senior partner, member of Congress);
- High-value or “untouchable” individuals shielded by their fundraising, prestige, or productivity;
- Career structures with single-gatekeeper bottlenecks (sole advisor, sole reference-letter writer, visa sponsor);
- Apprenticeship- or mentor-dependent fields (academia, law, medicine, Congressional staff, faith communities, performing arts);
- Cultures of devotion to mission (nonprofits, religious organizations) that frame normal scrutiny as disloyalty;

- Weak or captured HR; HR reporting up through the perpetrator's chain;
- Norms of secrecy around personnel issues; heavy use of NDAs;
- "Genius" or "founder" cultures that excuse interpersonal conduct.

IV. WHAT WORKS TO PREVENT THESE BEHAVIORS — EVIDENCE QUALITY EXPLICITLY GRADED

The 2016 EEOC Select Task Force concluded — and the 2018 National Academies report reinforced — that the prevailing approach (one-off, liability-driven compliance training) has not reduced harassment. The EEOC Task Force flatly stated that "much of the training done over the last 30 years has not worked as a prevention tool." The strongest evidence base supports *structural* and *cultural* interventions over training as the central lever.

4A. Interventions with Stronger Evidence

1. Bystander intervention and manager-focused training (Evidence: moderate-to-strong; consistent direction across studies). Dobbin & Kalev's analysis of 805 U.S. companies over 32 years (*PNAS* 116(25):12255–12260, 2019; *HBR* May–June 2020)

[Harvard Business Review](#) found that *manager training* — which positions managers as allies who must intervene — was followed by significant increases in white, Black, and Asian-American women in management. *Employee training* that frames male employees as suspects was followed by *decreases* in women in management. Their stated significance finding: "Sexual harassment grievance procedures incite retaliation, according to surveys, and our analyses show that they are followed by reductions in women managers. Sexual harassment training for managers, which treats managers as victims' allies and gives them tools to intervene, are followed by increases in women managers. Training for employees, which treats trainees as suspects, can backfire." [nih](#) Bystander training meta-analyses (campus settings, primarily) show increased intention to intervene, self-efficacy, and helping behavior; [nih](#) [ResearchGate](#) effects on actual harassment incidence are less well-established (Roehling & Huang, *Journal of Organizational Behavior*, 2018; Cronin et al., *Scientific Reports*, 2023).

2. Independent, well-resourced ombuds offices and multiple reporting channels (Evidence: moderate; primarily organizational case studies and International Ombuds Association data). The 1996 IOA cost-benefit data found that, of 258 "highest-potential-cost" cases handled by ombuds, 40% dealt with harassment or discrimination, [International Ombuds Association](#) and many "would not have gone through other channels." Dobbin & Kalev (2020) recommend supplementing formal grievance procedures with voluntary dispute resolution and an ombuds office "that can handle harassment claims on victims' terms." The EEOC's federal-sector *Promising Practices* guidance recommends "multiple avenues and methods to report harassment beyond the supervisory chain-of-

command," [U.S. Equal Employment Opportunity](#) including "portals, ombudspersons, human resources officials, and anti-harassment program personnel," [U.S. Equal Employment Opportunity](#) and anonymous hotlines. Third-party platforms (e.g., tEQuitable, founded by Lisa Gelobter, which the EEOC Task Force heard testimony about) extend this model to organizations too small for in-house ombuds.

3. Anonymous climate surveys with transparent reporting and follow-up (Evidence: moderate; recommended by NASEM 2018, NIH, and Freyd's institutional courage framework).

The NIH 2019 Workplace Climate and Harassment Survey is the published exemplar; [PubMed](#) the CARES Climate Survey (Climate of Accountability, Respect, and Ethics; *Frontiers in Research Metrics and Analytics*, 2025) is a validated 22-item instrument [nih](#) across 2,252 academic researchers. Surveys *only* work if followed by visible action; Freyd's institutional-courage research (Smidt, Adams-Clark & Freyd, *PLOS ONE*, 2022; n=317 workers who experienced sexual harassment) shows that supportive, transparent institutional responses measurably reduce trauma symptoms and *increase* organizational commitment, while institutional betrayal compounds harm. Freyd's "Ten Steps to Institutional Courage" include conducting "scientifically-sound anonymous surveys," [Uoregon](#) cherishing whistleblowers, and being "transparent about data and policy," [Uoregon](#)

4. Leadership accountability tied to consequences (Evidence: strong by professional consensus; quasi-experimental support).

The EEOC Task Force's first and most emphasized finding: "The importance of leadership cannot be overstated." Accountability systems must "ensure that those who engage in harassment are held responsible in a meaningful, appropriate, and proportional manner, and that those whose job it is to prevent or respond to harassment should be rewarded for doing that job well (or penalized for failing to do so)." [EEOC](#)

5. Structural diffusion of concentrated power (Evidence: moderate; consistent with risk-factor literature).

EEOC risk factors identify "significant power disparities" and "high-value employees" as predictive. Freyd's institutional-courage step #3 explicitly recommends institutions "add checks and balances to power structure and diffuse highly dependent relationships." [Uoregon](#) For grooming risk in particular, requiring multiple advisors, references, or evaluators rather than sole gatekeepers is a direct structural counter to the architecture of grooming.

6. Strong, enforced anti-retaliation protections (Evidence: strong; problem severity well-documented).

The 2018 NASEM report concluded that "Title IX, Title VII, and case law reflect the inaccurate assumption that a target of sexual harassment will promptly report the harassment without worrying about retaliation." [National Academies Press](#) Dobbin & Kalev (2019), citing U.S. Merit Systems Protection Board federal-workforce survey data, found that 66% of women who filed complaints faced retaliation. [nih](#) EEOC retaliation charges

(42,301 in FY 2024) have led all bases for seventeen consecutive years.

4B. Interventions with Weaker or Mixed Evidence

1. Traditional one-off, video-based sexual-harassment compliance training (Evidence: weak-to-null on incidence; can backfire). Roehling & Huang's 2018 review and the 2022 meta-analysis by Roehling, Wu, Choi & Dulebohn (*Personnel Psychology*) found increases in *knowledge* but inconsistent attitude effects and no reliable evidence of reduced harassment incidence. Dobbin & Kalev (2019) found that employee-targeted training that signals male trainees as potential perpetrators was followed by *reductions* in women in management — a backfire effect. The EEOC 2016 conclusion: training “must change.”

2. Civility / respectful-workplace training (Evidence: emerging; promising but limited). The EEOC piloted “Respectful Workplaces” training, delivered in more than 200 sessions to over 5,200 employees and supervisors in 18 states by 2018; rigorous outcome research on harassment incidence remains limited.

3. Mandatory arbitration and broad NDAs (Evidence: negative; documented harms). Pre-dispute arbitration and broad NDAs are now understood to suppress reporting and protect serial harassers. The Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (signed March 2022) and the Speak Out Act of 2022 partially curtailed these mechanisms. These laws should be considered a floor, not a ceiling, for institutional reform.

4. Mandatory reporting policies without trauma-informed handling (Evidence: mixed; can deter reporting). The NASEM report cautioned that mandatory-reporting policies that strip survivors of agency can deter disclosure altogether.

4C. Differences Between For-Profit and Nonprofit Sectors

For-profit organizations:

- Larger HR, legal, and compliance infrastructure; well-defined employment-law exposure.
- Strong incentive to suppress disclosure to protect brand value, share price, and litigation exposure.
- Greater capacity for ombuds programs, anonymous hotlines, third-party investigators.
- Public-company governance (board audit committee, whistleblower channels under Sarbanes-Oxley §806 for financial misconduct, Dodd-Frank §922 retaliation protections) provides hooks for accountability.
- The “high-value employee” risk factor is acute in finance, tech, entertainment, and law (the “rainmaker problem”).

Nonprofit organizations:

- Ma, LePere-Schloop & Smith (*Nonprofit Management and Leadership*, 2022) document wide variation in basic sexual-harassment policy adoption; [Wiley Online Library](#) smaller, less-resourced nonprofits often lack written policies. Organizations with full-time employees, more revenue, and greater capacity are more likely to have policies.
- Women make up 75% of jobs in the nonprofit, education, and philanthropic sectors (American Association of University Women, *Broken Ladders: Barriers to Women's Representation in Nonprofit Leadership*, 2018), increasing aggregate sex-based harassment exposure even before considering specific organizational dynamics.
- "Founder's syndrome" — concentrated, charismatic leader authority — is recognized as a governance pathology. Charitable Allies, the Foundation Group, and *Nonprofit Quarterly* all document the same pattern: founders with disproportionate influence beyond the organization's start-up phase, friend-and-family boards that fail to provide independent oversight, and mission-centered cultures that frame challenges to the founder as betrayal of the cause.
- Smutny (Civic Reinventions, 2024) and other nonprofit-governance practitioners describe boards that are "overly deferential to the executive leader" [Civic Reinventions](#) as a primary risk factor for unchecked executive-director abuse.
- HR is often a part-time function, sometimes reporting directly to the executive director — eliminating independence.
- Donor relationships create additional power asymmetries; major-donor or board-chair misconduct presents acute conflicts of interest in any internal investigation.
- Mission-driven self-sacrifice norms ("we do this because we care") can normalize unpaid overtime, blurred boundaries, and tolerance of mistreatment "for the cause."

Sector-specific prevention recommendations:

For-profits should prioritize:

- Eliminating pre-dispute arbitration for harassment claims beyond what federal law already requires;
- Public reporting (anonymized) of harassment complaint volumes and dispositions;
- Board-level review of high-value-employee complaints;
- Clawback of compensation for executives found to have engaged in or covered up harassment.

Nonprofits should prioritize:

- Mandatory independent board members (not friends, family, or major donors);
 - Term limits for board officers and founders in operating roles;
 - Codes of conduct that bind founders and executive directors with the same standards as staff;
 - Outsourced or shared HR/ombuds services where in-house capacity does not exist (consortia models, sector-association programs, third-party platforms);
 - Bright-line policies on board members' personal relationships with staff, and on donors' direct contact with junior staff;
 - Cross-organization data sharing (sector hotlines) to prevent serial perpetrators from moving between mission-aligned organizations undetected.
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Recommendations (Staged, with Triggering Benchmarks)

Stage 1 — Foundation (0–6 months): Baseline diagnosis and structural separation

1. **Conduct an anonymous workplace climate survey** using a validated instrument (CARES, the NIH Workplace Climate and Harassment Survey, or equivalent). Publish topline results. *Trigger to advance:* completion and published results.
2. **Establish reporting independence.** At minimum two reporting channels, neither of which reports up through any single executive's chain. For organizations with >100 employees, retain an external or internal ombuds. For nonprofits below that threshold, consortium-based or third-party platforms (such as the tEQuitable model) are a workable alternative.
3. **Audit power concentration.** Identify single-gatekeeper roles (sole supervisor, sole reference, sole grant signer, sole performance evaluator) and create secondary paths.
4. **Eliminate the worst structural enablers:** pre-dispute mandatory arbitration of harassment claims; NDAs that suppress disclosure of harassment; HR reporting lines that flow through the executive director or CEO.

Stage 2 — Build accountability (6–18 months)

5. **Implement manager-focused and bystander training,** not as a one-off compliance event but as a sustained program with refresher cycles. Avoid traditional employee-targeted "don't be a harasser" videos as the centerpiece — they have weak evidence

and can backfire (Dobbin & Kalev, 2019).

6. **Tie leadership performance reviews and compensation to climate metrics.** *Trigger to advance:* annual climate survey showing measurable improvement, or stable baselines with active complaint resolution.
7. **Adopt Freyd's institutional courage framework** — including transparent self-study, whistleblower protection, and trauma-informed disclosure handling. Train HR, leadership, and ombuds personnel in DARVO recognition (Deny, Attack, Reverse Victim and Offender).
8. **For nonprofits specifically:** restructure the board for true independence; install board-level complaint mechanisms with at least one external member empowered to receive complaints about the executive director without filtering.

Stage 3 — Sustain and audit (18+ months)

9. **External audit of complaint outcomes** every 2–3 years — what was reported, what was investigated, what action was taken, what retaliation occurred.
10. **Sector-level data sharing** — particularly important for nonprofits and Congressional offices, where perpetrators frequently move between organizations.
11. **Legislative reform consideration** (for the Congressional audience): extending the Ending Forced Arbitration Act's logic to bullying and discriminatory harassment generally; codifying the EEOC's *Promising Practices* into baseline federal-contractor requirements; supporting funding for the EEOC's outreach and training divisions; expanding whistleblower protections for nonprofit-sector workers under federal-grant compliance regimes.

Benchmarks that would change the recommendations:

- If climate surveys show no improvement after two cycles despite Stage-2 interventions, treat as a leadership-accountability failure — not a training failure — and act at the governance level.
 - If retaliation complaints rise after reporting channels are opened, that is *not* prima facie evidence of failure — it can reflect increased trust in reporting; correlate with disposition data.
 - If a single individual generates a cluster of complaints over time, treat the pattern itself as evidence and act, regardless of the evidentiary strength of any individual case.
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Caveats

- **Grooming is an emerging construct in adult workplace contexts.** The behavioral pattern is well-documented in case studies; the formal scientific validation lags. Treat Sinnamon's seven stages and similar models as useful heuristics, not as diagnostic criteria. Winters' 2023 work is the first systematic attempt at validation, [Waldenu](#) per the Walden University systematic review.
- **Evidence on training effectiveness is mixed and often based on knowledge/attitude proxies rather than harassment incidence.** Be skeptical of vendor claims of "evidence-based" training that rest on satisfaction surveys.
- **Prevalence data are limited by under-reporting.** The least common response to harassment is to file a formal report (NASEM 2018), so all complaint-based metrics underestimate true incidence; climate-survey-based metrics are more reliable.
- **The for-profit/nonprofit distinction is a generalization.** Large nonprofits (major universities, healthcare systems, foundations) have for-profit-scale infrastructure; small for-profits resemble small nonprofits in HR capacity.
- **Cultural and legal context matters.** Much of the bullying and intimidation research base is European (Norway, UK), where definitions and protections differ from U.S. law. Importing findings requires care.
- **Recommendations should be adapted, not adopted.** A Congressional office, a national nonprofit, a 50-person startup, and a Fortune 500 company face the same phenomena but very different implementation realities.
- **One discrepancy worth flagging:** EEOC FY 2023 retaliation data are reported by EEOC's official table as 56.8% of all charges, while one secondary source reports the absolute figure as 46,047 (Gen Re analysis); the percentage figure is from EEOC's official Table E1a, and the two reconcile ($56.8\% \times 81,055 \approx 46,039$) within rounding.